

IAS PRELIMS/MAINS

Ecology & Environment

A stylized illustration of a green city skyline with various skyscrapers, wind turbines, and a sun, set against a light green background with a globe-like shape.

A COMPREHENSIVE COVERAGE

MODULE - 57

INDIA'S LAWS AND POLICIES - 5

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SCHEDULED TRIBES AND OTHER TRADITIONAL FOREST DWELLERS (RECOGNITION OF FOREST RIGHTS) ACT, 2006

- The tendency to look at forest dwellers as encroachers who are to be evicted stems from the understanding of forests as created by the colonial state through its acts like the Indian Forest Act 1927.
- FRA 2006 was brought in to undo precisely this understanding of forest and forest dwellers.
- FRA 2006, was enacted to recognize and vest the forest rights and occupation of forest land in forest dwelling Scheduled Tribes and other traditional forest dwellers, who have been residing in such forests for generations.



RIGHTS RECOGNIZED BY THE ACT

- This Act not only recognizes the rights to hold and live in the forest land under the individual or common occupation for habitation or for self-cultivation for livelihood, but also grants several other rights to ensure their control over forest resources which include - right of ownership, access to collect, use and dispose of minor forest produce, right to protect, regenerate or conserve or manage any community forest resource which they have been traditionally protecting and conserving for sustainable use.
- The FRA provides for recognition and vesting of rights only to Scheduled Tribes and Other Traditional Forest Dwellers who have been primarily residing and depending on forest land for at least three generations (one generation as defined in the FRA is 25 years) and were in actual occupation of forestland before the cut-off date 13 December 2005.



RIGHTS RECOGNIZED BY THE ACT

- The FRA provides legal rights to such persons (after a due verification process) only to the extent of land actually under occupation and not exceeding 4 hectares.
- This makes it very clear that everybody cannot claim 4 hectares (10 acres) of land. Only claims of those Scheduled Tribes and Other Traditional Forest Dwellers who had been primarily residing and depending on forest land for three generations shall be considered but would be restricted to the extent of actual occupation of forest land before the cut-off date of 13 December 2005, and in no case exceeding 4 hectares.



RIGHTS RECOGNIZED BY THE ACT

- When a forest dweller files a claim for the land title or patta, it passes through three levels of checks:
 - ✓ the gram sabha
 - ✓ the Sub-divisional Level Committee (SDLC) and
 - ✓ the District Level Committee (DLC).
- A body called the Forest Rights Committee (FRC) is formed by the gram sabha to facilitate the process. FRC comprises of 10 to 15 people; of which $\frac{2}{3}$ rd belong to ST and $\frac{1}{3}$ rd are women.
- The FRA amended rules 2012, give a list of 14 proofs a claimant can provide to prove occupancy of forestland before December 13 2005.
- The list includes census data, maps, satellite imagery and government issued documents such as voter card and ration card. Even the statement of a village elder can work as proof.



RIGHTS RECOGNIZED BY THE ACT

- Once the claim is received, FRC does on-ground verification along with forest department officials. FRC verifies both the individual and community forest rights claims. FRC and gram sabha then hold a meeting to pass resolution on the claims. The meeting must complete the quorum of 50%.
- The resolution is then sent to SDLC which further verifies the claims and sends it to DLC.
- The claimant acquires patta only after an approval by DLC. If DLC rejects, the claimant can approach the court. Mandatory written communication to the claimants has to be sent if their claim is rejected.
- Over the past 13 years, 4.22 million applications have been filed under the FRA 2006. Of this, 1.94 million have been rejected. 54,591 sq km of forestland has been recognized for settling of rights, while the total forest land under occupation prior to 2005 was around 1,12,000 sq km.



CRITICAL WILDLIFE HABITAT

- FRA defines CWHs as areas in national parks and sanctuaries specifically and clearly established, case by case on the basis of scientific and objective criteria to be kept inviolate for the purposes of wildlife conservation.
- The Act states that the process of notifying a CWH can start only after 6 stipulated conditions are met. They are:
 - ✓ completion of the process of vesting FRA rights
 - ✓ scientifically and objectively establishing that people's activities can cause irreversible damage to wild animals and threaten their existence, where co-existence is impossible
 - ✓ when a resettlement or alternate package is prepared and communicated
 - ✓ informed consent of gram sabha is obtained and
 - ✓ facilities and land allocation at the resettlement location are complete.



THE MOEF ISSUES GUIDELINES IN 2018, THE GUIDELINES TO IDENTIFY CWH

- The Chief Wildlife Warden of a state shall notify an expert committee for the identification of CWH in a national park or sanctuary.
- The Expert Committee shall identify areas (CWH) based on scientific and objective criteria.
- The Expert Committee shall issue a public notice on the intention of notifying CWH. The public notice shall give details of areas required to be kept inviolate, criteria adopted for CWH identification, implications of the notification on the existing rights and all options of resettlement and rehabilitation.
- The Expert Committee shall carry out open consultations with all stakeholders.
- The Committee shall submit CWH proposal to the Chief Wildlife Warden. The decision on the proposal shall be taken by a Standing Committee of the National Board for Wildlife. A representative of the Ministry of Tribal Affairs would be present during the deliberations of the proposal by the Standing Committee. Following the Committee's recommendation, the CWH notification shall be published in the gazette.



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